

24LBCV02847 24LBCV02847

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C07%2F28%2F2026

Source SHA-256: 4b21daa18808c6507bd6b046be18fbf2251070dd43b34aec81c8de3a52a8941c

Case Number: 24LBCV02847 Hearing Date: July 28, 2026 Dept: S27

THIS IS A 3-PART TENTATIVE RULING

Part 1

Moving Parties: SSA Pacific, Inc.

Opposing

Parties: Jose Villa

Notice: OK

BACKGROUND

On March 25, 2024,

Plaintiff Jose Villa alleges tripping on the side of a step at the Port of Los Angeles, thereby causing him to fall into a glass door and/or window. On December 20, 2024, Plaintiff filed a complaint for Premises Liability and General Negligence against Defendants, Port of Los Angeles, City of Los Angeles, County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America, Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles for premises liability.

On March 27, 2025,

SSA Pacific, Inc. and City of Los Angeles filed a cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract, against Plaintiff Jose Villa, U.S. Expeditors. Villa Transportation, Inc., Inner Valley Transport, Inc., and IVT Logistics Worldwide, Inc. On September 3, 2025, Cross-Complainants dismissed U.S. Expeditors.

On January 29 and February 10, 2026, City of Los Angeles dismissed the cross-complaint. On March 3, 2026, the court sustained the demurrer of Jose Villa to the first, second and third causes of action in the cross-complaint without leave to amend, and continued the hearing on the breach of contract cause of action. On March 25, 2026, the court entered an order dismissing the entire cross-complaint as to Plaintiff Villa. On April 2, 2026, the court sustained the demurrer of IVT Logistics Worldwide, Inc. to the remaining cross-complaint of SSA Pacific of America without leave to amend. On April 17, 2026, the court entered a judgment of dismissal on the SSA Pacific, Inc. demurrer. On July 16, 2026, SSA Pacific Inc. filed a notice of appeal on the demurrer to the cross-complaint.

DISCUSSION

Applicable Law

The pleadings

frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his

or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Analysis

Defendant SSA

Pacific Inc. (SSA) moves for summary judgment on the complaint for premises liability and negligence. SSA moves on grounds of denial of any dangerous condition, no evidence SSA created said dangerous condition, lack of actual notice of any dangerous condition, and lack of proximate cause evidence regarding the condition and Plaintiff's injuries.

Plaintiff in opposition contends triable issues of material fact exist as to the existence of a non-code compliant unsafe condition, whereby SSA remains liable as the permit holder and therefore in control of the premises.

The court electronic filing system shows no reply on file on or after the July 17, 2026, filing deadline. (Code Civ. Proc., §437c, subd. (b)(4).)

1st Cause of Action: Premises
Liability

2nd Cause of Action: Premises
Liability

SSA only moves for summary judgment. The standard of review for both causes of action presents a singular test. "The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) "In order to prevail in an action based upon a defendant's alleged negligence, a plaintiff must demonstrate that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of his or her injuries." (Morris v. De La Torre (2005) 36 Cal.4th 260, 264.)

Trivial
Defect and Open and Obvious

SSA first relies on a characterization of the condition as either a trivial defect or open and obvious condition. "A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used." (Gov. Code, § 830.2.) "[T]o constitute a dangerous condition, the height differential, and the area surrounding it, must have

posed 'a substantial (as distinguished from a minor, trivial or insignificant) risk of injury' when 'used with due care in a manner in which it is reasonably foreseeable that it will be used.'" (Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1110.)

"Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Citation.) However, this is not true in all cases. '[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger. The foreseeability of injury, in turn, when considered along with various other policy considerations such as the extent of the burden to the defendant and consequences to the community of imposing a duty to remedy such danger [citation] may lead to the legal conclusion that the defendant' owed a duty of due care to the person injured." (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.) "[B]ecause the possessor or operator of a given premises is not an insurer of the safety of invitees onto his premises, he is entitled to assume that any such invitee will perceive that which should be obvious to him in the ordinary use of his [or her] senses." (Danieley v. Goldmine Ski Associates, Inc. (1990) 218 Cal.App.3d 111, 121.)

SSA appears to rely on this position without any apparent objective support other than Plaintiff previously visiting the area within the course and scope of employment as a truck driver in various times of day impacting lighting conditions. [Declaration of Heather Mills, Compendium of Evidence, Ex. F: Deposition of Jose Villa, 32:18-33:11, 34:10-35:2, 47:24-48:3, 52:15-53:4, Ex H: Deposition Exhibit.] The position lacks sufficient articulation establishing either an open and obvious or trivial defect defense simply based on prior visits. "A court should decide whether a defect may be dangerous only after considering all of the circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest." (Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 927.)

Plaintiff specifically challenges any factual finding of a trivial defect due to the non-compliant code conditions, and height

differential. Plaintiff also denies any open and obvious condition, but even if the specific section constituted an open and obvious hazard, Plaintiff asserts no notice of such danger.

SSA fails to shift the burden establishing either a trivial defect or open and obvious position. Even if SSA shifted the burden, Plaintiff submits expert testimony establishing triable issues of material fact as to both a trivial defect and open and obvious condition. [Declaration of Babak Kheiri, Ex. C: Declaration of Brad Avrit, PE.] The expert concludes that the slope change constitutes an “unexpected and significant hazard for pedestrians to traverse.” Such types of area often go “unnoticed” in that a pedestrian may not necessarily recognize a danger simply based on the height differential and change, due to the lack of a “salient” visual cue. [Id., ¶¶ 7-10.] The declaration is unchallenged and qualitatively establishes a basis for requirement of consideration by the trier of fact for any determination of the applicability of the two defenses. (See *Blumberg v. M. & T. Inc.* (1949) 34 Cal.2d 226, 229-230 [Spaces in floor mats created a foreseeable and actual dangerous condition to invitees]; *Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184 [Wet condition on premises constituted dangerous condition].)

Actual
or Constructive Notice

SSA denies any notice of a defective or dangerous condition. SSA represents regular inspections and denies any prior complaints. Plaintiff denies relief from liability based on prior efforts to demarcate the area. Plaintiff also notes the change to the area following the incident.

The later modifications are not considered as evidence of prior notice of a dangerous condition. “The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence ‘which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.’” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206–1207.)

“When an unsafe

condition which causes injury to an invitee has been created by the owner of the property himself or by an employee within the scope of his employment, the invitee need not prove the owner's notice or knowledge of the dangerous condition; the knowledge is imputed to the owner.” (Sanders v. MacFarlane's Candies (1953) 119 Cal.App.2d 497, 501.) Denial of notice without establishing the lack of a non-trivial, dangerous condition will not meet the standard for SSA to shift the burden regarding a lack of actual or constructive notice. Additionally, triable issues of material fact exist regarding the reasonableness of the lapse of time regarding inspection and rectification of the dangerous condition before the incident. (Howard v. Omni Hotels Management Corp. (2012) 203 Cal.App.4th 403, 431 accord Ortega v. Kmart Corp., supra, 26 Cal.4th at pp. 1206-1207.)

Causation

Finally SSA denies any causation

based on the denial of any dangerous condition. Again, SSA fails to shift the burden based on the lack of any factually and legally supported position establishing the lack of a dangerous condition. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.) Further triable issues of material fact exist based on Plaintiff's establishment of the dangerous condition through the unchallenged expert declaration. The circumstances establish a basis of causation not resolved as a matter of law in the instant motion. (Id. at p. 781.)

CONCLUSION

The motion for summary

judgment is DENIED due to the failure to shift the burden on any and all defenses and triable issues of material fact on each challenge.

Final Status Conference and Trial

remain set for October 16 and 19, 2026, respectively.

Moving party to give

notice.

Moving Parties: City of Los Angeles

Opposing

Parties: Jose Villa

Notice: OK

BACKGROUND

On March 25, 2024,

Plaintiff Jose Villa alleges tripping on the side of a step at the Port of Los Angeles, thereby causing him to fall into a glass door and/or window. On December 20, 2024, Plaintiff filed a complaint for Premises Liability and General Negligence against Defendants, Port of Los Angeles, City of Los Angeles, County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America, Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles for premises liability.

On March 27, 2025,

SSA Pacific, Inc. and City of Los Angeles filed a cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract, against Plaintiff Jose Villa, U.S. Expeditors. Villa Transportation, Inc., Inner Valley Transport, Inc., and IVT Logistics Worldwide, Inc. On September 3, 2025, Cross-Complainants dismissed U.S. Expeditors.

On January 29 and February

10, 2026, City of Los Angeles dismissed the cross-complaint. On March 3, 2026, the court sustained the demurrer of Jose Villa to the first, second and third causes of action in the cross-complaint without leave to amend, and continued the hearing on the breach of contract cause of action. On March 25, 2026, the court entered an order dismissing the entire cross-complaint as to Plaintiff Villa. On April 2, 2026, the court sustained the demurrer of IVT Logistics Worldwide, Inc. to the remaining cross-complaint of SSA Pacific of America without leave to amend. On April 17, 2026, the court entered a judgment of dismissal on the SSA Pacific, Inc. demurrer. On July 16, 2026, SSA Pacific Inc. filed a notice of appeal on the demurrer to the cross-complaint.

DISCUSSION

Applicable Law

The pleadings

frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382-383; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*)

“A party may move

for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not

owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) "An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork." (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Analysis

Defendant City of Los Angeles (City) moves for summary judgment on the complaint for premises liability and negligence. City moves on grounds of denial of any dangerous condition, no evidence the City created said dangerous condition, denial of any operational control of Berth 55, lack of actual notice of any dangerous condition, and lack of proximate cause evidence regarding the condition and Plaintiff's injuries.

Plaintiff in opposition contends triable issues of material fact exist as to the existence of a non-code compliant unsafe condition, whereby City remains liable as the permit issuer and cannot rely on a position of a delegable duty.

The court electronic filing system shows no reply on file on or after the July 17, 2026, filing deadline. (Code Civ. Proc., §437c, subd. (b)(4).)

Evidentiary
Objections

Plaintiff's

Objections, Numbers 1-22 are Overruled.

On numbers 1 and 2, City establishes ownership of the land by the State of California, and its management. An objection disallowing any consideration of City as the trustee and therefore proper issuer of the permit could render any finding regarding a basis of duty owed by the City null and void given the lack of any valid operating government entity named in the action.

1st Cause of Action: Premises
Liability

2nd Cause of Action: Premises
Liability

City only moves for summary judgment. The standard of review for both causes of action presents a singular test. "The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) "In order to prevail in an action based upon a defendant's alleged negligence, a plaintiff must demonstrate that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of his or her injuries." (Morris v. De La Torre (2005) 36 Cal.4th 260, 264.)

Trivial
Defect and Open and Obvious

City first relies on a characterization of the condition as either a trivial defect or open and obvious condition. "A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used." (Gov. Code, § 830.2.) "[T]o constitute a dangerous condition, the height differential, and the area surrounding it, must have

posed 'a substantial (as distinguished from a minor, trivial or insignificant) risk of injury' when 'used with due care in a manner in which it is reasonably foreseeable that it will be used.'" (Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1110.)

"Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Citation.) However, this is not true in all cases. '[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger. The foreseeability of injury, in turn, when considered along with various other policy considerations such as the extent of the burden to the defendant and consequences to the community of imposing a duty to remedy such danger [citation] may lead to the legal conclusion that the defendant' owed a duty of due care to the person injured." (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.) "[B]ecause the possessor or operator of a given premises is not an insurer of the safety of invitees onto his premises, he is entitled to assume that any such invitee will perceive that which should be obvious to him in the ordinary use of his [or her] senses." (Danieley v. Goldmine Ski Associates, Inc. (1990) 218 Cal.App.3d 111, 121.)

City appears to rely on this position without any apparent objective support other than Plaintiff previously visiting the area within the course and scope of employment as a truck driver in various times of day impacting lighting conditions. [Declaration of Heather Mills, Compendium of Evidence, Ex. F: Deposition of Jose Villa, 32:18-33:11, 34:10-35:2, 47:24-48:3, 52:15-53:4, Ex H: Deposition Ex.] The position lacks sufficient articulation establishing either an open and obvious or trivial defect defense based on prior visits. "A court should decide whether a defect may be dangerous only after considering all of the circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest." (Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 927.)

Plaintiff specifically challenges any factual finding of a trivial defect due to the non-compliant code conditions, and height

differential. Plaintiff also denies any open and obvious condition, but even if the specific section constituted an open and obvious hazard, Plaintiff asserts no notice of such danger.

City fails to shift the burden establishing either a trivial defect or open and obvious position. Even if City shifted the burden, Plaintiff submits expert testimony establishing triable issues of material fact as to both a trivial defect and open and obvious condition. [Declaration of Babak Kheiri, Ex. C: Declaration of Brad Avrit, PE.] The expert concludes that the slope change constitutes an “unexpected and significant hazard for pedestrians to traverse.” Such types of area often go “unnoticed” in that a pedestrian may not necessarily recognize a danger simply based on the height differential and change, due to the lack of a “salient” visual cue. [Id., ¶¶ 7-10.] The declaration is unchallenged and qualitatively establishes a basis for requirement of consideration by the trier of fact for any determination of the applicability of the two defenses. (See *Blumberg v. M. & T. Inc.* (1949) 34 Cal.2d 226, 229-230 [Spaces in floor mats created a foreseeable and actual dangerous condition to invitees]; *Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184 [Wet condition on premises constituted dangerous condition].)

Actual
or Constructive Notice

City relies on the existence of the Permit to co-defendant SSA Pacific, as delegating all operational control and duty to inspect the premises to SSA Pacific. City denies any notice of prior complaints as well.

Plaintiff challenges any finding of a non-delegable duty, and maintains an ongoing duty to inspect. A lack of notice of prior incidents will not relieve City from liability for a dangerous condition.

The delegation of duty position again provides no legal support, and instead only relies on the deposition of Seung-Hyun Kevin Kim, a presumed employee of the City, but no specifically identified position. [Mills Decl., Ex. A: Deposition of Seung-Hyun Kevin Kim.] Kim acknowledges the operative permit [25:23-26:11] and maintains the terms of the permit require acceptance in an “as is” condition with the occupant obligated

to maintain the premises [58:20-59:23]. Kim interprets section 2.4 of the permit as a basis for the City to deny any liability for injuries occurring due to the condition of the premises. [Id, 89:9-25.]

The

opinion of Kim constitutes nothing more than a statement without address of any legal standard or qualification to make this determination. City therefore fails to shift the burden establishing this defense.

Even

considering the defense, no valid basis of a non-delegable duty finds support. "Where

the law imposes a definite, affirmative duty upon one by reason of his relationship with others, whether as an owner or proprietor of land or chattels or in some other capacity, such persons can not escape liability for a failure to perform the duty thus imposed by entrusting it to an independent contractor.

... It is immaterial whether the duty thus regarded as 'nondelegable' be imposed by statute, charter or by common law." (Van Arsdale v. Hollinger (1968) 68 Cal.2d 245, 251 overruled on other grounds by Privette v. Superior Court (1993) 5 Cal.4th 689.)

Plaintiff cites to Government Code

section 818.6 for purposes of establishing a duty to inspect regardless of any permit terms. "A public entity is not liable for injury caused by its failure to make an inspection, or by reason of making an inadequate or negligent inspection, of any property, other than its property (as defined in subdivision (c) of Section 830), for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety." (Gov. Code, § 818.6.) The indirectly worded statute imposes a duty of care on the government entity in control of its property. The existence of the permit in no way relieves City from liability on grounds of non-delegable duty. "The essential justification for this rule is one of ensuring accountability of licensees so as to safeguard the public welfare. ...

If a licensee were not liable for the actions of his independent contractor, 'effective regulation would be impossible. He could contract away the daily operations of his business to independent contractors and become immune to disciplinary action by the licensing authority.' The principle that a licensee will be held liable for the acts of its agents is one that has been applied whether the agent is an independent contractor or an employee." (California Assn. of Health Facilities v. Department of Health Services (1997) 16 Cal.4th 284, 296.)

On lack of notice, again, City only cites to the deposition of the terminal manager denying any reported claims for 16 years. [Mills Decl., Ex. C: Deposition of Kevin Nielsen, 93:7-15.] The legally unsupported position fails to shift the burden establishing a valid basis for reliance on lack of notice.

“When an unsafe condition which causes injury to an invitee has been created by the owner of the property himself or by an employee within the scope of his employment, the invitee need not prove the owner's notice or knowledge of the dangerous condition; the knowledge is imputed to the owner.” (Sanders v. MacFarlane's Candies (1953) 119 Cal.App.2d 497, 501.) Given the finding of a non-trivial and not open an obvious hazard, triable issue of material fact exist on grounds that “that the hazardous condition existed long enough for the owner to have discovered it, if an owner exercising reasonable care would have learned of it” (Howard v. Omni Hotels Management Corp. (2012) 203 Cal.App.4th 403, 431 accord Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206-1207.)

Causation

Finally City denies any causation based on the denial of any dangerous condition. Again, City fails to shift the burden based on the lack of any factually and legally supported position establishing the lack of a dangerous condition. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.) Further triable issues of material fact exist based on Plaintiff's establishment of the dangerous condition through the unchallenged expert declaration. The circumstances establish a basis of causation not resolved as a matter of law in the instant motion. (Id. at p. 781.)

CONCLUSION

The motion for summary judgment is DENIED due to the failure to shift the burden on any and all defenses and triable issues of material fact on each challenge.

Final Status Conference and Trial remain set for October 16 and 19, 2026, respectively.

Moving party to give
notice.

Part 3

Moving Parties: Inner Valley Transport, Inc.

Opposing
Parties: SSA Pacific, Inc.

Notice: OK

BACKGROUND

On March 25, 2024,
Plaintiff Jose Villa alleges tripping on the side of a step at the Port of Los Angeles, thereby causing him to fall into a glass door and/or window. On December 20, 2024, Plaintiff filed a complaint for Premises Liability and General Negligence against Defendants, Port of Los Angeles, City of Los Angeles, County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America, Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles for premises liability.

On March 27, 2025,
SSA Pacific, Inc. and City of Los Angeles filed a cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract, against Plaintiff Jose Villa, U.S. Expeditors. Villa Transportation, Inc., Inner Valley Transport, Inc., and IVT Logistics Worldwide, Inc. On September 3, 2025, Cross-Complainants dismissed U.S. Expeditors.

On January 29 and February
10, 2026, City of Los Angeles dismissed the cross-complaint. On March 3, 2026, the court sustained the demurrer of Jose Villa to the first, second and third causes of action in the cross-complaint without leave to amend, and continued the hearing on the breach of contract cause of action. On March 25, 2026, the court entered an order dismissing the entire cross-complaint as to Plaintiff Villa. On April 2, 2026, the court sustained the demurrer of IVT Logistics Worldwide, Inc. to the remaining cross-complaint of SSA Pacific of America without leave to amend. On April 17,

2026, the court entered a judgment of dismissal on the SSA Pacific, Inc. demurrer. On July 16, 2026, SSA Pacific Inc. filed a notice of appeal on the demurrer to the cross-complaint.

DISCUSSION

Applicable Law

The pleadings frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382-383; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of

action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Request for Judicial Notice

Exhibits A-C: The court grants judicial notice as to the filing and existence of the pleadings, but cannot take judicial notice as to the content of any pleading for the truth of any matter asserted. (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1568-1569.)

Exhibit F-G:

Denied. The court cannot take judicial notice of applicant submitted information. (Cal. Evid. Code § 452, subd. (c); Friends of Shingle Springs Interchange, Inc. v. County of El Dorado (2011) 200 Cal.App.4th 1470, 1484; Elmore v. Oak Valley Hospital Dist. (1988) 204 Cal.App.3d 716, 721.)

Exhibit I: The

court takes judicial notice of its own prior minute order.

Procedural

Cross-Defendant

Inner Valley Transport Inc. (Inner Valley) only moves for summary judgment. Any later attempted request for summary adjudication is denied. "The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers. (Citation.)" Schmidlin v. City of Palo Alto (2007) 157 Cal.App.4th 728, 744 accord Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545.)

Analysis

1st Cause of Action: Apportionment of Fault

2nd Cause of Action: Indemnification

3rd Cause of Action:
Declaratory Relief

4th Cause of Action:
Breach of Contract

Inner Valley only moves for summary judgment on the SSA Pacific Inc. (SSA) cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract. Inner Valley moves on grounds of denial of any underlying liability arising from the Villa injuries, due to a lack of control of the premises, lack of any direction placing Villa on the premises at the time of the incident, and lack of any valid contract.

SSA in opposition rejects the position relied upon by Inner Valley denying ownership and/or control of the ramp where Plaintiff Villa fell. SSA instead relies on a claim that Inner Valley was responsible for directing Villa to the worksite. The terminal users agreement includes indemnity provisions.

Inner Valley in reply denies any contractual agreement with Villa, and instead represents Villa was under direction from IVT Logistics Worldwide, Inc. Inner Valley challenges the lack of any evidence of any such purported agreement, either implied or explicit.

The cross-complaint generally alleges the claims without specific identification as to the factual and legal basis. To the extent SSA disavows any claim for indemnity based on the underlying premises liability and negligence causes of action presented in the complaint, the court declines to consider the subject positions. (See *Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1158-1159.) The parties dispute distills down to a basis of liability against Inner Valley based on the provision of directions to Plaintiff Villa for a pickup at the location on the day of the accident.

Inner Valley

denies sending Plaintiff Villa to the premises. The only evidence it relies on is the declaration of company president Kenneth Brett, whereby Brett denies any assigned work to Villa on behalf of Inner Valley. The motion itself identified Villa as contracted with IVT Logistics Worldwide, Inc., but the evidence in support of the motion, including the declaration of Brett lacks any evidentiary support for this position. [Declaration of Kenneth Brett; See Declaration of Moses Yneges, ¶¶ 10-13, Compendium of Exhibits, Ex. H.]

On breach of contract, Inner Valley denies the existence of any basis of contractual enforcement between the parties. Inner Valley challenges the lack of any factual basis for the claim other than incorporation of the “Marine Terminal Operator Schedule of Rate, Regulations and Practices.” The incorporation of the Marine Terminal Operator places any alleged basis for contractual indemnity at issue. (See *Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 69; *Shaw v. Regents of University of California* (1997) 58 Cal.App.4th 44, 54; *Scolinos v. Kolts*, supra, 37 Cal. App. 4th at pp. 640-641.)

Inner Valley also cites

to the prior court order denying a motion to compel arbitration brought by SSA and City against Plaintiff. Inner Valley was not a party to this motion. The court only made a finding about City not being a party to the agreement, but in no way addresses Inner Valley in any capacity. Further, the motion only addressed arbitration agreements, not any potential indemnity provision. [Req. Jud. Not., Ex. I.]

SSA challenges any reliance on the denial of Inner Valley’s involvement based on the deposition testimony of Villa identifying Inner Valley

as the party responsible for directing the pickup. The position relies on the lack of proof of any relationship between Inner Valley and IVT Logistics Worldwide, Inc. SSA contends Inner Valley in no way negates the “agency/contractor and terminal-use theories” relied upon in the action. The cross-complaint lacks any apparent theory, but SSA correctly notes the lack of any legal and evidentiary support negating any relationship between Inner Valley and IVT Logistics Worldwide, Inc. Again, the sole declaration of Brett lacks any acknowledgment of IVT Logistics Worldwide, Inc. or dispels any possible relationship between the entities.

SSA presents a valid position. Inner Valley fails to shift the burden regarding any and all bases of liability for the placement of Villa on the date and time of the incident, due to the lack of valid evidence and legally supported positions. The later presented argument in reply challenging SSA for failing to meet its burden to defeat the Inner Valley motion for summary judgment lacks any acknowledgment of its own insufficient showing to shift the burden as to a lack of liability under any and all potential theories of liability in the cross-complaint.

Even if Inner Valley shifted the burden, triable issues of material fact exist regarding the relationship between Villa and Inner Valley. [Declaration of Aralan AlNasir, Ex. 1: Deposition of Jose Villa.] Whether or not Villa knew of any merger between the alleged entities, Villa still establishes an undisputed prior relationship with Inner Valley. Ignorance of later corporate ownership status and unrepresented shipping logs will not somehow establish a lack of valid evidence establishing a potential claim against Inner Valley. [Id.] Again, the motion lacks sufficient argument and evidentiary support for any and all challenged defenses, including the lack of any relationship between Inner Valley and IVT Logistics Worldwide, Inc.

Because Inner Valley fails to address the first three causes of action, the positions on the breach of contract claim need not be considered under the motion for summary judgment. Complete relief on the cross-complaint is not achievable.

CONCLUSION

The motion for summary judgment is DENIED due to the failure to shift the burden on any and all defenses and triable issues of material fact on each challenge.

Final Status Conference and Trial
remain set for October 16 and 19, 2026, respectively.

Moving party to give
notice.